# ALTA SURVEY

Mesa Osprey Collegiate Commons | Charlotte, NC

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| **Project** | Mesa Osprey Collegiate Commons |
| **Address** | 6081 Sunset Street, Charlotte, NC 88527 |
| **Client** | Tidewater Core Fund |
| **Field Work Date** | March 9, 2018 |

**1. Surveyor's Certificate.** To Tidewater Core Fund, Heartland Title Insurance Co. and Northfield Commercial Bank: this is to certify that this map or plat and the survey on which it is based were made in accordance with the 2021 Minimum Standard Detail Requirements for ALTA/NSPS Land Title Surveys. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**2. Legal Description.** Being a tract of land situated in the county of record, beginning at an iron rod found at the intersection of the north line of Sunset Street with the east line of the tract; thence N 40° 40' 40" E, a distance of 4040.40 feet to an iron rod set. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**3. Survey Note 1.** The property contains 32.32 acres, more or less, and has direct access to Sunset Street, a public right of way. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**4. Survey Note 2.** Parking: 4545 regular spaces and 45 accessible spaces were counted on the surveyed property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

**5. Survey Note 3.** No evidence of recent earth moving work, building construction or building additions was observed in the process of conducting the fieldwork. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

**6. Survey Note 4.** The surveyed property lies within Zone X (areas determined to be outside the 0.2% annual chance floodplain) per FIRM panel in effect. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**7. Easements.** Utility easements as shown on the face of the survey are plotted to the extent described in the record documents provided in the title commitment. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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# Certification

I certify that, to the best of my knowledge and belief, the statements of fact contained in this report are true and correct and that I have no present or prospective interest in Mesa Osprey Collegiate Commons and no personal interest with respect to the parties involved.

The analyses, opinions and conclusions are limited only by the reported assumptions and limiting conditions. The inspection of the property was performed on March 2, 2018.

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Tyrone Coleman, CPG

Axis Land Surveying

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